

Asia Pacific

Bangkok
Beijing
Brisbane
Hanoi
Ho Chi Minh City
Hong Kong
Jakarta
Kuala Lumpur
Manila
Melbourne
Seoul
Shanghai
Singapore
Sydney
Taipei
Tokyo
Yangon

**Europe,
Middle East &
Africa**

Abu Dhabi
Almaty
Amsterdam
Antwerp
Bahrain
Barcelona
Belfast
Berlin
Brussels
Budapest
Cairo
Casablanca
Doha
Dubai
Dusseldorf
Frankfurt/Main
Geneva
Istanbul
Jeddah*
Johannesburg
Kyiv
London
Luxembourg
Madrid
Milan
Munich
Paris
Prague
Riyadh*
Rome
Stockholm
Vienna
Warsaw
Zurich

The Americas

Bogota
Brasilia**
Buenos Aires
Caracas
Chicago
Dallas
Guadalajara
Houston
Juarez
Lima
Los Angeles
Mexico City
Miami
Monterrey
New York
Palo Alto
Porto Alegre**
Rio de Janeiro**
San Francisco
Santiago
Sao Paulo**
Tijuana
Toronto
Valencia
Washington, DC

* Associated Firm

** In cooperation with
Trench, Rossi e Watanabe
Advogados

21 July 2025

Secretariat of the International Court of Arbitration
of the International Chamber of Commerce
Attn.: Ms. Dimitra A. Tsakiri
Ms. Mihaela Tarnovschi
33 avenue du Président Wilson
75116 Paris
France

Filip Boras

Partner
filip.boras@bakermckenzie.com
Our reference: SRO/CAH
508270871

By email and ICC Case Connect
ica3@iccwbo.org

ICC Case No. 29534/ICA3
Elcomponics Holdings B.V v. Invictus GmbH and Invictus Cable GmbH
Qualifications for Prospective Sole Arbitrator

Dear Ms. Tsakiri,
Dear Ms. Tarnovschi,

We refer to the Secretariat's Letter dated 17 July 2025 in the above-referenced arbitration, by which the Secretariat informed Respondents that the Court will appoint a Sole Arbitrator according to Article 12(3) of the ICC Rules and invited Respondents to further comment on the qualification of the Sole Arbitrator.

The main issues of the dispute have to be resolved based on Austrian substantive law. The Court shall appoint a Sole Arbitrator with firm knowledge of and qualification in Austrian law based on the following three reasons:

First, the claims brought by Claimant are rooted exclusively in the alleged breach of contractual warranties and indemnities contained in the SPA and the Completion Memorandum, not the SHA. Warranty breaches do not fall within the scope of the arbitration agreement under Clause 10.2 of the SHA. The parties expressly agreed to a specific procedural regime, reflecting their intent to subject SPA related disputes, including disputes regarding the Completion Memorandum, "*arbitration in accordance with the rules of VIAC (Wiener Regeln)*"¹ and not arbitration under the ICC Rules stipulated in the SHA. Respondents reserve all rights to challenge the jurisdiction of the Sole Arbitrator and providing these comments on the qualifications of the Sole Arbitrator shall not be construed as consenting to its jurisdiction.

¹ Exhibit C-3, p. 8, clause 11.2.

Second, assuming that a Sole Arbitrator should be appointed under Clause 10.2 of the SHA to decide on any warranty breaches under the SPA or the Completion Memorandum concluded pursuant to Clause 3 of the SPA (*quod non*), Claimant's statement that "*English law [...] governs the SHA*"² is irrelevant for the selection of the Sole Arbitrator in this arbitration: Claimant's main ground to invoke its alleged rights under the SHA is – on Claimant's own account – based on the following "Governing clauses":

The only provisions Claimant relies on from the SHA (namely, clauses 6.1.(a) and 6.2.(b) of the SHA), merely reference the SPA or the Completion Memorandum concluded based on the SPA: "*Either Party (the "Non-Defaulting Party"), for material breach by the other Party (the "Defaulting Party") of any of its material representations and warranties, covenants or other obligations under this Agreement and /or the SPA ...*".³

Impugned act / factual finding	Governing clause(s)	Principal exhibits (for verification)	Contractual consequence
Falsified 23 March 2023 balance sheet – concealment of €1,122,595.16 shareholder-loan receivable and €428,182.09 corporate-income-tax liability.	Completion Memorandum cl 3 (true-and-fair warranty); SHA cl 6.1 (a) (material representation) and cl 6.1 (b) (wilful misconduct).	Completion Memorandum & March-23 Balance-Sheet (Exh C-6).	Event of Default – immediate Put-Option right under SHA cl 4.6(d)(ii).

Request for Arbitration, p. 20.

It is therefore clear that the core of the dispute – whether an alleged material breach of the SPA or Completion Memorandum was committed – will have to be decided under Austrian substantive law according to Clause 11.2 of the SPA ("*This Deed and the rights and obligations arising out of or in connection with this Deed shall be governed by and construed in accordance with Austrian law.*"). Thus, the Sole Arbitrator will have to apply Austrian substantive law to determine the existence of warranty breaches.

Finally, Clause 10.2 of the SHA states that the SHA shall be governed by English law "*subject to mandatory provisions of Austrian and Indian laws.*" Accordingly, and as previously stated in Respondents' letter of 25 June 2025, Austrian mandatory law such as the Austrian Limited Liability Companies Act and Austrian tax laws and accounting rules, will in any case be applicable throughout the proceedings, leading to greater significance than English law.

Respondents therefore respectfully submit that a Sole Arbitrator qualified to practice law in Austria or with an Austrian law degree shall be appointed. At the very least, the Sole Arbitrator shall have substantial knowledge of and expertise in Austrian corporate law.

Yours sincerely



Filip Boras

² Claimant's Response to Proposal for Constitution of Arbitral Tribunal dated 15 July 2025, p. 2.

³ Exhibit C-5, p. 14, SHA Clause 6.1. (a).

CC:

Ms. Sudipta Routh
Ms. Pooja Dadoo
Ms. Malika Nanduru
Mr. Advait Balekundri
Luthra and Luthra Law Offices India
20th Floor, Tower 2, Unit A2, One International Centre,
Elphinstone Road, Senapati Bapat Marg, Lower Parel,
Mumbai – 400013
India

By email and ICC Case Connect
srouth@luthra.com
pdadoo@luthra.com
mnanduru@luthra.com
abalekundri@luthra.com